

SENATE No. 1584

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to prevent undue influence on prescriber behavior.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>7/3/2025</i>

SENATE No. 1584

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 1584) of Mark C. Montigny for legislation to prevent undue influence on prescriber behavior. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1419 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to prevent undue influence on prescriber behavior.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 111N of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting before the definition of “Person” the following
3 definition:-

4 “Modest Meals and Refreshments,” food and/or drinks provided by or paid for by a
5 pharmaceutical or medical device manufacturing company or agent to a health care practitioner,
6 the cost of which does not exceed the allowance defined by the U.S. General Services
7 Administration for the Massachusetts per diem localities. The allowable amounts for modest
8 meals and refreshments shall be updated on an annual basis in accordance with the U.S. General
9 Services Administration meal allowance rates.

SECTION 2. Clause (6) of the third paragraph of section 2 of said chapter 111N is hereby amended by adding after the word “regulation” the following words:- consistent with section 1 of this chapter. For the purposes of this section, presentations that occur in a manner conducive to informational communication shall prohibit the provision of and pharmaceutical or medical device manufacturing company payment for any form of alcoholic beverage. Meals and refreshments shall be provided within the context of the informational presentation, and shall not occur prior to or following the educational presentation. Presentations shall not occur in locations that are otherwise recreational in nature, including, but not limited to, resorts, sporting clubs, casinos or other vacation destinations.

SECTION 3. Section 2A of said chapter 111N is hereby amended by inserting, after clause (3), the following clauses:

- (4) total amount spent on meals for such presentation;
- (5) total amount spent on the venue for such presentation;
- (6) a description of the content of such presentation;
- (7) total number of prescriber attendees at such presentation;
- (8) names of attendees present at such presentation;
- (9) names and credentials of presenters at such presentation; and
- (10) total amount spent on other items of economic value provided at such presentation.

28 SECTION 4. Subsection (1) of section 6 of said chapter 111N is hereby amended by
29 adding the following sentence:- The department of public health shall collect receipts for all
30 required reporting expenditures pursuant to this section and section 2A of this chapter.